prepare a biennial investigator report for the next hearing date. The Clerk is directed to send notice to the parties.

In the Matter of the Bruce Sandoval Trust **26-60272**

ACCOUNTING HEARING

TENTATIVE RULING: This accounting hearing is VACATED as redundant, in light of Trustees' July 31, 2026, Petition to Approve Seventh Account set for hearing on September 03, 2026.

CIVIL LAW & MOTION CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

M5 Automotive LLC v. Kastner Automotive Inc. et al **22CV000567**

PLAINTIFF AND CROSS-DEFENDANT M5 AUTOMOTIVE LLC'S MOTION FOR: (1) AN ORDER RULING THAT ENFORCEMENT OF THE FEE AND COST AWARD IS NOT AUTOMATICALLY STAYED BY APPEAL AND THAT AN UNDERTAKING IS REQUIRED; OR, IN THE ALTERNATIVE, (2) AN ORDER REQUIRING A DISCRETIONARY UNDERTAKING

TENTATIVE RULING: The motion is GRANTED. The Court concludes that the Fee and Cost Appeal (appealing the post-judgment orders awarding $1,650,607.75 in attorneys' fees and $49,971.61 in costs to M5 ("Fee and Cost Award")) is not subject to the automatic stay without an undertaking under the final provision of Code of Civil Procedure section 917.1, subdivision (d). Rather, because both the Merits Award (defined below) and Fee and Costs Award have been appealed, an undertaking is required to stay the enforcement thereof pursuant to section 917.1, subdivision (a)(1), which undertaking is calculated based on the Merits Award and Fee and Cost Award pursuant to the first provision of Code of Civil Procedure section 917.1, subdivision (d), less any amount that has been satisfied (here, the Merits Award). Thus, the perfecting of the appeals does not serve to stay enforcement of the Fee and Cost Award unless an undertaking of one and one-half times the Fee and Cost Award is posted. The alternative request to require a discretionary bond under section 917.9 is therefore MOOT.

The moving party failed to include in the notice of this motion proper notice of the Court's tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. PROCEDURAL MATTERS

Plaintiff and Cross-Defendant M5 Automotive LLC ("M5") moves, pursuant to Code of Civil Procedure section 917.1 and 917.9, [1] for an order ruling that (1) this action has not been automatically stayed by the Notice of Appeal dated May 19, 2026 (the "Fee and Cost Appeal") filed by Defendants and Cross-Complainants Kastner Automotive, Inc. and William Kastner, Jr. (collectively, "Seller Parties") from the post-judgment orders awarding $1,650,607.75 in attorneys' fees and $49,971.61 in costs to M5 ("Fee and Cost Award"); and (2) the Seller Parties must post an undertaking of 1.5 times the Fee and Cost Award to obtain a stay pending appeal. Alternatively, if the Court finds the Fee and Cost Appeal has triggered an automatic stay, Seller Parties are required to post a discretionary undertaking of 1.5 times the Fee and Cost Award to obtain a stay pending appeal.

M5 moves "on the grounds that the Fee and Cost Award is integrated into the Second Amended Judgment and, thus, constitutes a monetary award [under section 917.1, subdivision (a)(1)] not subject to the imposition of an automatic stay [under section 917.1, subdivision (d)]. Accordingly, if the Seller Parties want to stay enforcement of the Fee and Cost Award, then they must post an undertaking required by [] section 917.1, subdivision (b) in the amount of 1.5 times the Fee and Cost Award. There is an actual controversy between the parties on this point—the Seller Parties have contended in written correspondence with M5 that it is their legal position that by filing a notice of appeal of the Fee and Cost Award, they have automatically stayed enforcement of that order. Further, the Seller Parties have contended that, should M5 seek to execute on the Fee and Cost Award, they will seek relief from this Court." (Notice of Motion, 3:14-23.)

B. RELEVANT FACTUAL BACKGROUND

On August 15, 2025, a jury returned a verdict in favor of M5 and awarded $1,185,683.24 in monetary damages ("Merits Award"). The Merits Award was ultimately memorialized through a Second Amended Judgment, dated February 19, 2026. The Second Amended Judgment expressly states that M5 "shall be entitled to its costs of suit upon timely submission of its Memorandum of Costs, which will be added to the amount awarded in this Second Amended Judgment." (2/19/26 Second Amended Judgment, p. 12, ¶ 5.) On February 20, 2026, Seller Parties filed a notice of appeal of the Second Amended Judgment. The parties do not dispute that the Second Amended Judgment is subject to section 917.1, subdivision (a)—i.e., no automatic stay pending the appeal without an undertaking. On February 27, 2026, M5 filed a Notice of Satisfaction of Judgment.

Post-judgment motion practice resulted in an award to M5 of costs in the amount of $49,971.61 on April 9, 2026 and an award of attorneys' fees in the amount of $1,650,607.75 on May 12, 2026. On May 19, 2026, Seller Parties filed a notice of appeal of the Fee and Costs Award.

[1] All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.

C. LEGAL STANDARDS

The default rule is that, "[u]nless an undertaking is given, the perfecting of an appeal shall not stay enforcement of the judgment or order in the trial court if the judgment or order is … [m]oney or the payment of money …." (§ 917.1, subd. (a)(1).) To stay a money judgment, an appellant must post an undertaking one and one-half times the judgment, inclusive of awarded costs and fees. (§ 917.1, subd. (b).)

"However, no undertaking shall be required pursuant to this section solely for costs awarded under Chapter 6 (commencing with Section 1021) of Title 14." (§ 917.1, subd. (d).) "[A] judgment consisting solely of costs is not a money judgment requiring an undertaking." (*Quiles v. Parent* (2017) 10 Cal.App.5th 130, 137.) Thus, an appeal of a costs-only judgment is automatically stayed without an undertaking.

That said, under section 917.9, the court has discretion to condition the automatic costs-only stay on the posting of an undertaking. (§ 917.9, subd. (a)(3).) *Quiles* has suggested the following non-exclusive factors as appropriate for a trial court to consider when exercising its discretion under section 917.9, subdivision (a)(3): (1) whether "the costs judgment is large," (2) whether "the danger of asset dissipation is acute," or (3) whether the judgment debtor engaged in "bad faith in managing the underlying litigation." (See *Quiles*, *supra*, 10 Cal.App.5th at 145.)

D. DISCUSSION

1. <u>The Fee and Costs Appeal does not Automatically Stay Enforcement of the Award under the Final Provision of Section 917.1, Subdivision (d)</u>

The issue raised by M5's motion is whether the Fee and Costs Appeal automatically stays the Fee and Costs Award without an undertaking under the final provision of section 917.1, subdivision (d), or whether the enforcement of the Fee and Cost Award is not automatically stayed unless and until Seller Parties post an undertaking pursuant to section 917.1, subdivisions (a)(1), (b), and the first provision of subdivision (d).

M5 takes the latter position, arguing that (1) the Fee and Cost Award became integrated into the Second Amended Judgment, and (2) because Seller Parties' appeal of the Merits Award does not automatically stay enforcement under section 917.1, subdivision (d), the appeal of the integrated Fee and Cost Award also does not automatically stay enforcement.

Seller Parties take the former position, arguing that the Fee and Cost Award is a costs-only judgment within the meaning of section 917.1, subdivision (d) because Seller Parties satisfied the Merits Award. Seller Parties acknowledge that they have appealed *both* the Merits Award and the Fee and Costs Award (distinguishable from any authority upon which they rely), but they contend that, because M5 only seeks to enforce the Fee and Costs Award, the Court should only consider the nature of the Fee and Costs Award and disregard the Merits Award in applying section 917.1. (Opp., 6:9-15, 7:5-10.) Seller Parties rely on *Nielsen v. Stumbos* (1990) 226 Cal.App.3d 301, *Dowling v. Zimmerman* (2001) 85 Cal.App.4th 1400, *Ziello v. Sup. Ct.* (1999) 75 Cal.App.4th 651, and *Quiles*, *supra*, 10 Cal.App.5th at 139 in support of their position.

Nielsen and *Dowling* involved judgments for costs only; no money damages were awarded. Thus, they are not on point. In *Quiles*, the court awarded $208,500 in actual damages, $50,591.69 in costs, and $689,310.04 in attorneys' fees against Parent. (*Id.* at 138.) "Parent's solution to this predicament was to pay off the damages award (plus interest) and appeal only the award of attorney fees and costs. He claims that this maneuver converted what appeared to be a money judgment into a judgment solely for costs." (*Ibid.*) The court agreed with the analysis from *Ziello v. Sup. Ct.* (1999) 75 Cal.App.4th 651, 655-56, which reasoned that "[s]ince the appeal is limited to the order awarding costs, including attorney's fees, it is within the exclusion of the final provision of section 917.1, subdivision (d)." (*Quiles*, *supra*, 10 Cal.App.5th at 139 ["We therefore agree with the holding in *Ziello*. Applying *Ziello* to the facts here, it is clear that Parent is appealing only the awards of attorney fees and costs and not the underlying damage award. Parent has satisfied the underlying damage award. *If* the remaining attorney fees and costs are "costs" under section 917.1, subdivision (d), Parent is entitled to an automatic stay without posting an undertaking."].)

On the one hand, *Ziello* and *Quiles* are similar to the case at hand in that the appellants, there, satisfied the underlying money judgments and appealed the attorneys' fee and costs award. However, *Ziello* and *Quiles* are distinguishable in a critical way, as the appellants there did *not* appeal from the underlying money judgment; they *only* appealed the attorneys' fee and costs award. Thus, the holdings in *Ziello* and *Quiles* can only stand for the proposition that a judgment containing both money damages and attorney fees and costs is subject to the final provision of section 917.1, subdivision (d) where the money damages have been satisfied *and* the appeal is limited to costs. Here, on the other hand, Seller Parties' have appealed both the Merits Award and Fee and Costs Award. Seller Parties appear to recognize this distinction (see Opp., 1:25-2:1, 5:22-26) all while contending that *Ziello* and *Quiles* are controlling. Neither party cites to any authority in which these precise circumstances have been involved in a section 917.1, subdivision (d) analysis. The Court, in its independent research, has not located any case directly on point.

Despite the distinction between this case and *Ziello* and *Quiles*, *Ziello* and *Quiles* seem to suggest that the focus in determining whether or not the exception under section 917.1, subdivision (d) applies is less on whether the money judgment or fee and costs award has been *satisfied*, and more on *which order* is subject to appeal. Seller Parties recognize this. (See Opp., 6:3-4 ["The [*Ziello*] court reasoned that because the appeal was limited to the order awarding costs, including attorney fees, the appeal fell within the exclusion in section 917.1(d)."].)

The Court also finds that this interpretation is most consistent with a plain reading of section 917.1 in its entirety, which is that "the perfecting of an appeal" of a "judgment or order" for "money" does not stay enforcement of the "judgment or order," which includes an award of "costs" (see first provision of subd. (d)), unless an undertaking is posted. Here, Seller Parties perfected an appeal of the Merits Award (a judgment for money). By doing so, the enforcement of the Merits Award *and* Fee and Costs Award is not stayed without an undertaking. Although the Merits Award has been satisfied, that fact more appropriately concerns the ultimate calculation of the required undertaking (as further discussed in Section D.2. below) as opposed to triggering the final provision of section 917.1, subdivision (d).

Although the Court is not free from doubt, it finds M5's position most reasonable and its reasoning most compelling.

First, neither *Ziello* nor *Quiles* settled or involved the question of whether section 917.1, subdivision (d)'s automatic stay (no bond required) applies to a judgment of both money damages and fees and costs where the judgment debtor pays the money damages and appeals *both* the money damages and fees and costs award of a judgment.

Moreover, this precise fact pattern—of two judgments awarding money *and* costs—was not at issue in *Nielsen* or *Dowling*, the authority relied upon by Seller Parties. A stand-alone fee and cost award, at issue in those cases, is fundamentally different from a money judgment that expressly contemplates the inclusion of a fee and cost award.

Furthermore, the Court cannot reasonably construe Seller Parties' payment of the Merits Award as transforming their appeal of the Merits Award *and* Fee and Costs Award into only an appeal of the Fee and Costs Award, as Seller Parties' position would essentially have the Court do.

Finally, the Court does not find the concerns raised in *Vadas v. Sosnowski* (1989) 210 Cal.App.3d 471, 474 and *Nielsen*, *supra*, 226 Cal.App.3d at 304—that requiring a judgment for costs to be bonded would require bonding in virtually every case—at issue here. (See Opp., 7: 28-8:10.) The Court's ruling here is limited to the unique circumstances where it is undisputed that both money damages and attorneys' fees and costs were awarded and appealed. As discussed, the Court believes these circumstances fall within the provisions of section 917.1, subdivision (a)(1).

Based on the foregoing, the Court concludes that the Fee and Cost Award is not subject to section 917.1, subdivision (d)'s automatic stay of enforcement. Thus, enforcement of the Fee and Costs Award is not stayed unless and until Seller Parties post an undertaking pursuant to section 917.1, subdivisions (a)(1) and (b), further discussed below.

This conclusion renders it unnecessary for the Court to consider the alternative request in M5's motion or Seller Parties' opposition thereto, regarding the Court's exercise of discretion to require Seller Parties to post an undertaking pursuant to section 917.9. (See Mem., 17:20-22:2; Opp., 9:17-15:16; Reply, 4:4-10:22.) That said, even assuming *arguendo* the enforcement of the Fee and Costs Award was subject to an automatic stay without an undertaking under 917.1, subdivision (d), the Court would be inclined to exercise its discretion to require a bond under 917.9 given *inter alia* the significant amount of Fee and Costs Award. (See *Quiles*, *supra*, 10 Cal.App.5th at 868-69 ["In a case where the costs judgment is large or the danger of asset dissipation is acute, a trial court can mitigate any injustices arising from the costs-only judgment rule."].) While the Court need not reach a determination thereon, M5 makes a strong showing in support of the Court's exercise of a discretionary bond based on the size of the Fee and Costs Award.

2. <u>The Required Bond under Section 917.1 is Based on the Fee and Costs Award, as the Remaining Unpaid Portion of the Second Amended Judgment</u>

M5 requests Seller Parties to post an undertaking in the amount of 1.5 times the Fee and Cost Award to obtain a stay of its enforcement pending appeal. (Notice of Motion, 3:10-11.)

The Court acknowledges Seller Parties' argument that requiring bond to be based solely on the Fee and Costs Award makes for an unusual application of the first provision of section 917.1, subdivision (d). (Opp., 7:11-8:10.) Section 917.1, subdivision (d) provides that fees and costs "shall be included" in the amount of the judgment for purposes of calculating bond under section 917.1, subdivision (a)(1) and (b). If the bond is based only on the Fee and Costs Award, there is no other "amount" or "judgment" with which the fees and costs "shall be included."

Seller Parties use this premise to argue that no bond should be required to stay enforcement of the Fee and Costs Award. However, Seller Parties' argument seems to conflate the requirement that a party post a bond under section 917.1, subdivision (a)(1), with the calculation of the bond under section 917.1, subdivision (d). In other words, the parties do not dispute that the appeal of the Merits Award requires a bond to stay enforcement. While no bond was posted because Seller Parties instead elected to satisfy the Merits Award, as discussed in detail above, the Court does not find that Seller Parties' election to satisfy the Merits Award transforms the pending appeals into a costs-only appeal.

That said, the fact that Seller Parties elected to satisfy the Merits Award seems relevant to calculating the bond that is required. In these circumstances, it seems reasonable to the Court to base the bond's calculation solely upon the unpaid portion on appeal, which is the Fee and Costs Award.

<u>Joel V. Benson v. Lisa Benson et al</u> **25CV001556**

MOTION OF PLAINTIFF JOEL V. BENSON FOR ORDER APPOINTING APPRAISER

TENTATIVE RULING: The motion is GRANTED IN PART and DENIED IN PART. The request for an order appointing a disinterested real estate appraiser to determine the fair market value of the Property is GRANTED as modified by the fourth and fifth points requested by Defendant further discussed below. Specifically, attendance by both parties' counsel at the inspection by the appraisal is required and the parties are ordered to meet and confer concerning a designated appraiser. The request for an order recognizing Plaintiff's reasonable attorneys' fees and costs incurred herein as "costs of partition" is GRANTED, with the determination of the reasonable fees and costs deferred as further described below.

Plaintiff shall provide an amended proposed order consistent with this ruling.

The matter is set for a Status Conference Re: Appraiser on September 11, 2026, at 8:30 a.m. in Dept. A. The parties are ordered to meet and confer on candidates in a good faith effort to agree on an appraiser. Upon any agreement, the parties may submit a stipulation and proposed